

HOUSE BILL 751

By Faison

AN ACT to amend Tennessee Code Annotated, Title 37;
Title 39 and Title 40, relative to criminal offenses.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-15-401(d)(2), is amended by deleting "subsection (d)" and substituting "subdivision (d)(1)".

SECTION 2. Tennessee Code Annotated, Section 39-15-401(d), is amended by designating the current language as subdivision (d)(1) and adding the following as a new subdivision (d)(2):

(2)

(A) A person who knowingly, by act or omission, engages in conduct that places a child in imminent danger of death, bodily injury, or physical or mental impairment commits a Class E felony; except that if the abused child is eight (8) years of age or less, then the penalty is a Class B felony.

(B) For purposes of this subdivision (d)(2), a person engages in conduct that places a child in imminent danger of death, bodily injury, or physical or mental impairment if the person unlawfully possesses any amount of fentanyl, carfentanil, remifentanil, alfentanil, or thiafentanil in the presence of the child.

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it.